

Comprehensive Analysis of Post-Judgment Debt Enforcement in Poland: Procedural Mechanics, Cross-Border Limitations, and Strategic Asset Tracing

Introduction to the Jurisdictional and Factual Matrix

The recovery of substantial commercial capital from an uncooperative debtor operating a sole proprietorship (*Jednoosobowa Działalność Gospodarcza* or JDG) within the Republic of Poland necessitates a profound understanding of domestic civil procedure, bailiff regulations, and the strategic deployment of legal instruments across jurisdictions. The specific scenario under analysis involves a debtor, Mateusz Szklarski, legally registered under the business name "GPUcomputer" in Kraków. However, this registration utilizes a virtual office arrangement at ul. Mogilska 16/7, a common strategy that obscures physical operational presence. Compounding the complexity of this enforcement effort is the debtor's heavy leveraging of cross-border mobility. By residing and generating primary wage income in the Netherlands, the debtor has effectively decoupled his legal business domicile from his actual economic center of gravity. The creditor in this matrix is poised to secure a final payment order from the Electronic Writ of Payment system (EPU) for a principal amount of 155,000 PLN, supplemented by accrued statutory interest for delay in commercial transactions. The primary challenge facing the creditor is the anticipated insolvency within the Polish jurisdiction, specifically the high probability of an empty or minimal-balance domestic bank account (suspected to be held at Alior Bank based on public records) and the apparent absence of immediately visible real estate assets within the territory of Poland.

This exhaustive report delivers a meticulous, step-by-step deconstruction of the Polish execution proceedings (*egzekucja komornicza*). It traces the chronological procedure from the obtention of the final enforcement title to the strategic management of a legally certified ineffective execution (*bezskuteczność egzekucji*). Furthermore, it evaluates the precise cost structures mandated by recent legislative overhauls, the absolute permeability of the JDG liability framework, the theoretical and practical reach of Polish investigative databases, and the initial stepping stones required to ultimately transition the recovery effort from the restricted domain of Poland to the active economic reality of the Netherlands.

Part 1: Transitioning the EPU Title to Active Enforcement

The Mechanics of the Electronic Writ of Payment (EPU)

The foundational prerequisite for initiating state-coerced debt recovery in Poland is the possession of an enforcement title (*tytuł wykonawczy*). In the modern Polish legal landscape, the vast majority of uncontested commercial claims are routed through the Electronic Writ of Payment system (EPU), centrally managed by the VI Civil Division of the District Court for Lublin-Zachód. The EPU culminates in the issuance of an order for payment in writ proceedings (*nakaz zapłaty w postępowaniu upominawczym*).

However, because the debtor's actual physical residence appears to be in the Netherlands, a critical jurisdictional and procedural hurdle exists within the very architecture of the EPU framework. The EPU system is structurally designed exclusively for domestic service of process. If the electronic court becomes aware—either through the creditor's admission in the initial lawsuit or through unsuccessful postal delivery attempts that reveal a foreign domicile—that the debtor's address requires cross-border service, the court will absolutely decline to issue the order in the EPU format. In such circumstances, the court is statutorily obligated to *umarzać* (discontinue) the electronic proceedings or, under previous procedural rules, transfer the case to the general civil procedure track at the locally competent court in Kraków.¹

A transfer or refiling under general civil rules (*zasady ogólne*) entails significantly higher initial financial exposure for the creditor. While the EPU system benefits from a reduced court fee equivalent to 1.25 percent of the value of the dispute, the standard civil procedure commands a standard fee of 5 percent of the dispute value.¹ For a principal claim of 155,000 PLN, this represents a jump in upfront court costs from 1,938 PLN in the EPU to a substantial 7,750 PLN in traditional proceedings. Furthermore, the traditional paper-based process is vastly slower, burdened by physical mail, traditional court dockets, and the complexities of serving documents under the EU Service Regulation (Regulation (EU) 2020/1784) when the defendant resides in the Netherlands.

Assuming this hurdle is successfully navigated—perhaps because the debtor has maintained a registered address for service in Poland, or a proxy authorized to receive correspondence at the virtual office—and the debtor does not file an effective statement of opposition (*sprzeciw*) within the strict statutory two-week period following successful service, the payment order achieves legal finality (*prawomocność*). It is critical to note that in the EPU system, the filing of any successful *sprzeciw* automatically cancels the payment order in its entirety, forcing the matter into standard litigation.²

The Enforceability Clause and the Creation of the Enforcement Title

Once the EPU order attains finality, it is not yet actionable by a bailiff. The creditor must electronically petition the Lublin-Zachód court to endow the final judgment with an enforceability clause (*klauzula wykonalności*). The combination of the final substantive judgment (the *nakaz zapłaty*) and the procedural authorization (the *klauzula wykonalności*) structurally transforms the document into a full-fledged enforcement title (*tytuł wykonawczy*). This specific legal instrument grants the creditor the absolute right to instruct a court bailiff (*komornik sądowy*) to deploy the coercive apparatus of the state to seize assets.⁵

Within the highly digitized EPU environment, this clause is issued electronically. The resulting

document is an "e-title," meaning the creditor does not receive a paper document with a physical red judicial seal. Instead, the creditor receives a system-generated cryptographic code and a unique case identifier. This allows the creditor to subsequently forward the entire enforcement application to a chosen bailiff entirely electronically through the integrated IT systems linking the court and the bailiff chambers, thereby drastically reducing initial friction, minimizing postal delays, and accelerating the commencement of the actual asset hunt.

Part 2: Pre-Enforcement Anti-Dissipation Tactics

The Vulnerability Window in Writ Proceedings

A persistent anxiety for commercial creditors navigating the Polish legal system is the window of vulnerability that exists between the moment a court issues a judgment and the moment that judgment achieves formal, enforceable finality. If a savvy debtor systematically monitors the EPU electronic system or receives the initial court correspondence, they might detect the issuance of the *nakaz zapłaty* and deliberately attempt to liquidate, conceal, or transfer Polish assets before the enforceability clause is granted and the bailiff can intervene.

The creditor's options to proactively freeze assets pre-enforcement (*zabezpieczenie roszczenia*) are highly restricted when utilizing the standard EPU *upominawczy* track. Under the stringent regulations of the Polish Code of Civil Procedure (KPC), a standard order for payment in writ proceedings (*postępowanie upominawcze*) does not inherently constitute a title of security upon its mere issuance.¹ This stands in stark, deliberate contrast to the much stricter, evidence-heavy order for payment in summary proceedings (*postępowanie nakazowe*). A *nakaz zapłaty w postępowaniu nakazowym* automatically acts as a securing title the very moment it is issued by the judge, allowing the creditor to utilize a bailiff for an immediate freezing of bank accounts or property before the judgment even becomes final or the debtor has a chance to appeal.¹

Because the EPU exclusively operates within the parameters of the weaker *upominawczy* orders—which require only the substantiation of a claim rather than irrefutable documentary proof like a signed promissory note or accepted bill of exchange—the creditor cannot utilize the EPU order itself to demand a preemptive freeze from a bailiff. While Article 730 of the KPC technically permits a creditor to petition a general civil court for a customized security injunction at any stage of proceedings by proving both the legal plausibility of the claim and the tangible risk of asset dissipation (the legal interest in securing the claim), obtaining such an injunction involves immense procedural friction.⁶ It requires initiating a parallel, often paper-based procedure before a standard court, presenting hard, compelling evidence of the debtor's active intent to hide assets (which is notoriously difficult to prove), and frequently waiting weeks for a judicial decision. This cumbersome process entirely negates the speed and efficiency advantages of utilizing the EPU in the first place.

The Forced Mortgage Strategy (*Hipoteka Przymusowa*)

Consequently, in the EPU environment, the creditor's primary weapon is raw procedural speed. The absolute moment the two-week opposition period expires without a challenge, the creditor must immediately and aggressively petition the Lublin-Zachód court for the electronic *klauszula wykonalności*.

Once this final title is granted, the paramount protective step—assuming the creditor suspects or knows of specific real estate owned by the debtor—is not to wait for the bailiff to commence standard, often slow field operations. Instead, the creditor can bypass the bailiff entirely for the purpose of initial asset securing. By leveraging the final enforcement title, the creditor possesses the unilateral statutory right to immediately petition the land registry court (*sąd wieczystoksięgowy*) to register a forced mortgage (*hipoteka przymusowa*) against any real property owned by the debtor in the Electronic Land and Mortgage Register (*Elektroniczne Księgi Wieczyste*).⁹

Establishing a forced mortgage creates an instant, unshakeable proprietary lock on the asset, securing the 155,000 PLN principal plus all enumerated interest directly against the brick-and-mortar equity. This action immunizes the creditor against subsequent attempts by the debtor to sell the property, artificially burden it with friendly debt, or transfer it to family members via donation. Even if the debtor succeeds in selling the property, the forced mortgage runs with the land, meaning the new buyer acquires the property subject to the creditor's absolute right to force a sale to satisfy the debt. This mechanism is the single most powerful anti-dissipation tactic available under Polish civil law immediately following the finalization of an EPU judgment.

Part 3: The Linear Enforcement Procedure: Strategic Initiation

The Right to Choose a Bailiff (*Prawo Wyboru Komornika*)

With the enforcement title secured, the procedure formally shifts from the judiciary to the executive enforcement organs. The Polish enforcement system operates on a hybrid model that blends strict territorial jurisdiction with conditional creditor discretion. The strategic selection of the bailiff is governed primarily by Article 10 of the Act of 22 March 2018 on Court Bailiffs (*Ustawa o komornikach sądowych*).

Under the fundamental default rules outlined in the Code of Civil Procedure (KPC), a bailiff is generally competent to act only within their specific territorial district (*rewir*), which corresponds strictly to the jurisdiction of the local district court (*sąd rejonowy*) where their office is established. For a debtor whose business is registered at ul. Mogilska in Kraków, the default competent bailiff would be one attached to the District Court for Kraków-Śródmieście.

However, Article 10 of the Act on Court Bailiffs provides the creditor with a powerful statutory tool: the right to choose any bailiff operating within the much broader territorial jurisdiction of the overarching Court of Appeal (*sąd apelacyjny*).¹⁰ The Kraków appellate jurisdiction is expansive, encompassing multiple districts and cities. The decision to exercise this right of choice is rarely arbitrary for sophisticated commercial creditors.

Creditors typically leverage Article 10 to seek out bailiff offices recognized for aggressive asset tracing methodologies, highly digitized internal workflows, and rapid communication protocols, deliberately bypassing local offices that may be historically overloaded, understaffed, or technologically stagnant. To formally exercise this right, the creditor must submit an explicit written statement within the enforcement application (*wniosek egzekucyjny*), formally declaring that they are utilizing their right to choose a bailiff under Article 10 of the Act on Court Bailiffs.¹⁰

Without this specific written declaration, the chosen bailiff must reject the application for lack of territorial jurisdiction.

Statutory Limitations on Bailiff Selection

This flexibility, while powerful, is deliberately constrained by the legislature to balance efficiency with administrative stability. There are two primary categories of statutory limitations that dictate when the right of choice cannot be exercised or when a chosen bailiff must refuse the mandate. First, certain intensive types of enforcement are strictly reserved by law for the bailiff who holds local jurisdiction over the specific physical asset, regardless of the creditor's preference. Most notably, any execution derived from real estate (*egzekucja z nieruchomości*), the physical eviction of persons, the introduction into possession of property, and the emptying of commercial premises cannot be delegated to an out-of-district bailiff under any circumstances.¹⁰ If a creditor initially chooses a highly efficient bailiff from outside the immediate district to handle bank accounts and movables, but subsequently discovers real estate owned by the debtor in a different district, the out-of-district bailiff is legally barred from seizing the real estate. They must formally decline that specific portion of the enforcement and mandate the creditor to transfer the real estate execution to the locally competent official, creating a bifurcated enforcement process.

Second, the 2018 legislative overhaul introduced strict workload caps to prevent the monopolization of the enforcement market by a few highly efficient, industrial-scale "factory" bailiff offices, which previously resulted in systemic bottlenecks. A chosen bailiff operating outside their default district is legally mandated to refuse an out-of-district application if they fail to meet specific performance and volume metrics. Specifically, they must refuse the case if their backlog of pending executions exceeds six months (unless their total incoming cases in the prior year were exceptionally low, under 1,000). Furthermore, they are barred from accepting out-of-district cases if their total influx of cases in the current year has already surpassed 2,500, combined with an overall recovery effectiveness rate falling below thirty-five percent in the preceding year. Finally, an absolute statutory ceiling exists: no bailiff may accept an out-of-district case if their total incoming cases for the current calendar year have exceeded 5,000.¹⁰

Drafting the Enforcement Application (*Wniosek Egzekucyjny*)

Initiating the physical enforcement procedure requires the submission of a highly formalized enforcement application (*wniosek o wszczęcie egzekucji*). This foundational document frames the entire scope of the bailiff's mandate. The application must explicitly identify the creditor, precisely identify the debtor (including the critical NIP and PESEL algorithmic identifiers), state the exact principal debt of 155,000 PLN, outline the mathematical calculation of accrued interest, and specify the enforcement methods requested.

While historical practice required creditors to painstakingly list specific assets (e.g., naming a specific bank or providing the license plate of a car), the modern approach in Polish debt recovery is to utilize a comprehensive mandate. The creditor broadly requests execution from all conceptually possible asset classes: bank accounts, movable property, remunerations,

intellectual property, and other financial rights. Crucially, this must be accompanied by a formal, paid request for the bailiff to conduct a comprehensive asset search (*poszukiwanie majątku*), thereby authorizing the bailiff to utilize their full array of investigative databases without needing individual permission for every query.

Part 4: The Economics of Enforcement: Advances, Fees, and Cost Allocation

The financial architecture of the Polish enforcement process was radically restructured by the Act of 28 February 2018 on Bailiff Costs (*Ustawa o kosztach komorniczych*). The prevailing philosophy of this legislation is designed to balance two principles: first, that a defaulting debtor must ultimately bear the financial consequences of a successful state execution, and second, that the creditor must finance the speculative, investigative phase of the recovery through non-refundable fees and conditionally refundable advances to prevent the frivolous use of state resources.

Upfront Financial Obligations of the Creditor

The moment the application is filed, the creditor is met with immediate financial obligations. The bailiff will not commence any substantive action until these initial costs are deposited.

The creditor must deposit an advance payment (*zaliczka*) under Article 7 of the Act to cover anticipated cash disbursements (*wydatki*). These disbursements constitute the actual operational costs of the investigation and include postal fees for mandatory correspondence, travel expenses for field operations to the debtor's registered address, and the specific transactional costs of accessing restricted governmental databases (such as the fees charged by the KIR for OGNIVO queries or the Ministry of Digital Affairs for CEPiK access).¹⁵

In addition to these granular, variable expenses, Article 44 of the Act on Bailiff Costs mandates a fixed, non-refundable flat fee of 100 PLN specifically for the comprehensive asset tracing service (*poszukiwanie majątku*).¹⁶ This fee applies inherently when the creditor relies on the bailiff to locate the debtor's wealth rather than pointing the bailiff toward a specific, verified, and liquid asset capable of fully satisfying the 155,000 PLN debt.

Proportional Fees Upon Successful Recovery

If the bailiff successfully locates and liquidates assets—for instance, if the suspected Alior Bank account actually harbors significant funds—the primary remuneration for the bailiff is triggered in the form of a proportional enforcement fee (*opłata stosunkowa*).

Under the general rule set by Article 27 of the Act on Bailiff Costs, this fee is standardly set at ten percent of the successfully recovered amount.¹⁹ The mechanics of this fee are designed to be seamless for the creditor during a successful recovery: the bailiff deduces this ten percent directly from the seized funds before transferring the principal balance to the creditor's account. Therefore, the debtor ultimately pays this penalty out of their seized wealth.

However, the 2018 legislative reforms introduced a statutory incentive designed to encourage rapid voluntary compliance and reduce the burden on the execution system. If the debtor, upon receiving the formal notice of the initiation of execution (*zawiadomienie o wszczęciu egzekucji*),

voluntarily pays the entire debt directly to the bailiff's depository account or directly to the creditor within a strict fourteen-day window, the proportional fee is drastically reduced from ten percent to a preferential rate of three percent.²⁰

The Shifting Financial Burden

The critical nuance of the Polish cost structure is that it is highly contingent on actual, localized recovery. The dynamic allocation of enforcement costs shifts radically based on the outcome of the proceedings.

Phase of Enforcement	Financial Mechanism	Primary Burden	Description
Initiation	Advances (<i>Zaliczki</i>) & Tracing Fee (100 PLN)	Creditor	Creditor must front all operational costs to fund the bailiff's investigation.
Successful Recovery	Proportional Fee (10% standard, or 3% if paid in 14 days)	Debtor	Bailiff deducts the fee directly from seized assets. Creditor receives principal.
Ineffective Execution (<i>Bezskuteczność</i>)	Sunk Advances & Discontinuation Fee (150 PLN penalty)	Creditor	Creditor loses the upfront advances and must pay a statutory penalty fee (unless exempt by law).

While successful recovery forces the debtor to absorb the proportional fees, an ineffective execution legally redirects the burden of investigation expenses and statutory discontinuation fees back onto the creditor, a scenario that is highly probable given the debtor's foreign residency and empty domestic accounts.

Part 5: The Polish Asset Tracing Infrastructure and JDG Liability

The Illusion of the Corporate Veil in Sole Proprietorships

The legal target in this case is a debtor operating a *Jednoosobowa Działalność Gospodarcza*

(JDG) under the name "GPUcomputer". It is a fundamental, structural tenet of Polish civil and commercial law that a JDG is merely a natural person conducting organized business activity. There is absolutely no legal separation, no corporate veil, and no subsidiary liability between the business entity (GPUcomputer) and the individual (Mateusz Szklarski). They are legally indistinguishable.

Consequently, the bailiff is authorized by law to simultaneously attach and seize assets across the entirety of the debtor's economic existence. The NIP (Tax Identification Number) associated with the JDG serves as a master key linking commercial and personal spheres. The bailiff does not need to exhaust business assets before pursuing personal assets, nor vice versa. Private retail bank accounts, corporate settlement accounts, personal family vehicles, business inventory theoretically located at the virtual office, and private real estate are all instantly, concurrently, and equally exposed to the enforcement title.

If the debtor is married under the statutory regime of joint matrimonial property (*wspólność majątkowa*), the complexity increases, but the JDG liability remains severe. While a standard enforcement title against the husband alone generally allows execution only from his personal assets and the assets of the JDG, the income generated by the JDG usually falls into the joint property. To execute against joint assets (like a jointly owned home or a joint bank account), the creditor typically requires an enforcement title endowed with a specific clause against the spouse, which requires proving the spouse consented to the incurrence of the debt. However, assets strictly comprising the enterprise itself remain highly vulnerable.

The Digital Investigative Ecosystem

Upon receipt of the 100 PLN asset tracing fee and the required cash advances, the bailiff immediately initiates a sequence of electronic queries through a highly integrated network of state and banking databases. The efficiency of the Polish enforcement system relies almost entirely on this digital ecosystem.

1. The OGNIVO System (Banking Infrastructure):

Managed by the National Clearing House (*Krajowa Izba Rozliczeniowa* - KIR), the OGNIVO system is undoubtedly the most potent and rapid weapon in the bailiff's arsenal. It digitally connects the bailiff's office to virtually every commercial bank, cooperative bank, and credit union (SKOK) operating within the Polish jurisdiction. The bailiff submits a secure, automated query utilizing the debtor's PESEL and NIP.

Typically within hours, and at most a few days, the system returns a definitive, exhaustive list of every domestic banking institution where the debtor maintains any form of account relationship.¹⁵ Crucially, for security and data minimization reasons, the OGNIVO system does not reveal the actual account balance—it merely confirms the existence of the contractual relationship. Upon receiving a positive hit (such as confirming the existence of the suspected Alior Bank account), the bailiff electronically dispatches a formal notice of attachment of receivables from a bank account (*zajęcie wierzytelności z rachunku bankowego*).

The receiving bank is legally compelled by the Code of Civil Procedure to instantly, upon receipt of the electronic notice, freeze the available balance up to the limit of the 155,000 PLN debt plus enforcement costs. The bank must subsequently transfer the frozen funds to the bailiff's depository account, subject only to strict statutory minimums protected from seizure (such as

the equivalent of the national minimum wage, intended to ensure basic survival). If the Alior account is empty, the bank will acknowledge the attachment but report a zero balance, effectively placing a tripwire on the account for any future incoming funds.

2. The Central Register of Vehicles (CEPiK):

Concurrently, the bailiff queries the CEPiK database to identify any motor vehicles registered to the debtor's PESEL or NIP. If a vehicle is discovered, the bailiff formally attaches it by entering a seizure notice directly into the electronic register. This administrative block prevents the debtor from legally selling, deregistering, or transferring the title of the vehicle.

However, the practical monetization of a vehicle requires physical control. The bailiff must locate the car, seize it in person, transport it to a secure lot, appraise it, and subject it to a public electronic auction. Given the established facts that the debtor lives and works full-time in the Netherlands, any vehicle utilized for his daily life is almost certainly physically located outside the territorial reach of the Polish bailiff. While a CEPiK hit provides excellent strategic leverage—the debtor cannot legally dispose of the asset—it is practically difficult to liquidate unless the vehicle was abandoned or left dormant at a known address in Poland.

3. Social Security (ZUS) and Tax Authorities (US): Queries directed to the Social Insurance Institution (ZUS) and the Tax Office (US) serve dual investigative purposes. ZUS records comprehensively reveal if the debtor is officially employed by a Polish entity, receiving a Polish state pension, or actively paying health and social contributions as a business owner.¹⁵ The Tax Office query can be utilized to intercept annual tax return overpayments, legally redirecting tax refunds directly into the execution process before they reach the debtor.

More broadly, these queries help the bailiff map the debtor's domestic financial footprint. However, in this specific scenario, a critical barrier emerges. Because the debtor operates exclusively in the Dutch labor market, his income is governed by the EU coordination of social security systems. He is likely paying contributions into the Dutch system (UWV/Belastingdienst). Unless he voluntarily and unnecessarily declares his cross-border wage income to the Polish authorities, the ZUS and US databases will likely reflect a dormant, zero-contribution status perfectly aligned with the façade of the virtual office in Kraków. The Polish databases are blind to the Dutch payroll.

4. Electronic Land and Mortgage Registers (EKW):

The search for real property is conducted via the central database of the Electronic Land and Mortgage Registers (*Elektroniczne Księgi Wieczyste*). Utilizing the PESEL number, the bailiff can instantly uncover apartments, undeveloped land parcels, or commercial spaces owned entirely or fractionally by the debtor anywhere in Poland.

If real estate is discovered, the creditor gains a massive strategic advantage and tangible equity to target. The creditor can instruct the bailiff to initiate the highly complex, prolonged process of real estate execution, which involves formal appraisal by a certified valuer, detailed description, and public auction. Alternatively, as discussed in Part 2, the creditor can utilize the EKW system to register a forced mortgage, securing the debt against the property without immediately forcing a costly and time-consuming auction.

5. Movables and the Virtual Office Dilemma:

Standard bailiff procedure involves a field visit to the registered address of the debtor to seize movable property (cash, electronics, inventory). Here, the Kraków address (ul. Mogilska 16/7) is

known to be a virtual office. When the bailiff's assessor visits this location, they will likely find only a receptionist handling mail for hundreds of shell companies, with zero physical assets belonging to Mateusz Szklarski or "GPUcomputer". The bailiff will document this absence in an official protocol, effectively neutralizing the prospect of executing against movable business assets.

Part 6: The "Bezskuteczność" Protocol: When Domestic Execution Fails

The Declaration of Ineffective Execution

Given the specific facts of the case—a dormant virtual office acting as a front, an empty Alior Bank account, no domestic real estate, and full-time employment generating wages strictly within the sovereign territory of the Netherlands—the Polish asset tracing infrastructure is highly likely to return entirely negative or unusable results. The Polish bailiff simply cannot seize Dutch wages, the Polish bank account holds zero capital, and ZUS shows no domestic income streams to garnish.

When all legally permissible avenues of investigation within Poland have been exhaustively utilized and no assets capable of satisfying even the enforcement costs, let alone the principal debt, are located, the bailiff reaches a procedural dead end. Under these circumstances, the bailiff is legally bound to issue a formal decision discontinuing the enforcement proceedings due to their complete ineffectiveness.

This mechanism is strictly governed by Article 824 § 1 point 3 of the Code of Civil Procedure. This article mandates the *ex officio* (from office/automatic) discontinuation of proceedings when it becomes evident that the execution will not yield a sum higher than the operational costs of the execution itself.²³ For a completely dormant entity with an absentee owner, reaching this status typically takes between two to four months from the initiation of the application.

This procedural termination culminates in the issuance of a formal certificate and judicial decision of ineffectiveness (*postanowienie o umorzeniu postępowania wobec bezskuteczności egzekucji*). While this document initially represents a frustrating failure to recover the 155,000 PLN capital domestically, it is, in reality, an incredibly powerful legal instrument that unlocks critical secondary recovery, tax, and penal strategies.

The Shifting Financial Burden of Ineffectiveness

The issuance of the *bezskuteczność* decision triggers a severe and often unwelcome reallocation of the financial burden under the Act on Bailiff Costs. The overarching principle established by Article 770 of the Code of Civil Procedure dictates that the debtor must refund the costs of a purposeful execution to the creditor. However, when the execution yields absolutely nothing, the bailiff cannot extract their expenses from thin air, and the state will not subsidize the loss.

Consequently, the out-of-pocket cash advances deposited by the creditor at the initiation of the case (for postal fees, registry queries, and field travel) immediately become sunk costs. The bailiff will issue a final decision confirming that these costs mathematically remain a legal liability

of the debtor, to be added to the total debt pile, but the creditor is left out of pocket in the immediate interim.²⁰

More punitively, the 2018 legislative reforms introduced a specific discontinuation fee designed to deter creditors from utilizing state enforcement resources for purely exploratory, unvetted, or highly speculative claims. According to Article 29 section 4 of the Act on Bailiff Costs, the discontinuation of proceedings specifically due to ineffectiveness forces the bailiff to levy a proportional penalty fee of 150 PLN directly against the creditor.¹⁹

However, recognizing that this penalty could stifle legitimate commerce, the legislature carved out vital, highly specific exemptions to protect standard commercial actors. Under Article 29 section 5 of the Act, the bailiff is prohibited from collecting this 150 PLN fee from specific categories of creditors. These protected classes include natural persons pursuing employee or compensatory/damages claims, local government units, and, most crucially for this scenario, corporate entities whose core business activity is *not* financial or insurance-related.²⁵

Therefore, if the creditor in this case is a standard commercial enterprise (e.g., an IT hardware distributor or manufacturer that supplied goods to GPUcomputer), they are legally exempt from the 150 PLN penalty, provided they furnish the bailiff with appropriate documentation (such as a KRS registry extract) proving their non-financial status.²⁵

Conversely, if the creditor is a financial entity, the rules are stricter. A financial entity is only exempt if it meets a rigid three-prong test: they must be the original primary creditor (*wierzyciel pierwotny* - meaning they originated the loan or debt), the debt cannot have been traded or sold on the secondary market (e.g., to a collection agency), and they must have initiated the execution within a strict two-year window from the creation of the enforcement title.²⁵ Secondary debt purchasers who buy portfolios of bad debt are explicitly designed to bear the 150 PLN risk for every failed execution.

The Strategic Value of the Ineffectiveness Certificate

Despite the immediate financial friction of lost advances, securing the formal *bezskuteczność* certificate is a mandatory tactical milestone for any sophisticated creditor. Its value materializes across three distinct and highly potent domains:

1. Tax Optimization and Bad Debt Relief

From a corporate accounting and fiscal perspective, the certificate acts as definitive, state-sanctioned proof of an uncollectible receivable. Under Polish corporate tax law (CIT/PIT), this official document is the required evidentiary basis allowing the creditor to formally write off the 155,000 PLN debt as a tax-deductible loss, generating an immediate tax shield that mitigates the financial damage. Furthermore, it serves as the primary trigger for activating the "bad debt relief" (*ulga na złe długi*) mechanism in VAT regulations, permitting the creditor to legally claw back the VAT previously remitted to the tax office upon the issuance of the original, unpaid sales invoice.

2. Activation of the Criminal Track (Article 300 of the Penal Code)

The certificate establishes an official, unassailable baseline of the debtor's legal insolvency within Poland. This becomes highly relevant if the creditor harbors suspicions that the debtor engaged in fraudulent conveyance or deliberate asset dissipation. Article 300 § 2 of the Polish

Penal Code (*Kodeks karny*) explicitly criminalizes the act of thwarting or mitigating the execution of a court decision.

If the creditor can marshal evidence demonstrating that Mateusz Szklarski intentionally transferred, hid, gifted, or destroyed assets *after* the threat of enforcement became clear (e.g., after the EPU order was served, or during the business relationship when default was imminent), the debtor faces severe criminal liability, punishable by up to five years of imprisonment.²³

In modern Polish debt recovery, the mere credible threat of a criminal investigation under Article 300 KK is frequently the most potent psychological leverage a creditor possesses against an evasive debtor. The *bezskuteczność* certificate is the foundational, irrefutable proof required by the prosecutor's office to demonstrate that the creditor has suffered actual harm (a strict prerequisite for the crime) and that the civil execution was, in objective fact, frustrated.²³ A meticulously drafted criminal notification, backed by this certificate of failure, frequently bypasses civil dead ends and forces evasive debtors to the negotiating table to avoid international arrest warrants and a permanent criminal record.

3. Resetting the Statute of Limitations The endurance of the enforcement title is a critical strategic consideration. Under the amended Article 125 of the Polish Civil Code (*Kodeks cywilny*), a principal claim confirmed by a final court judgment prescribes after six years (significantly reduced from the historical ten-year period). However, claims for periodic performances, which strictly include the statutory interest continuously accruing on the 155,000 PLN principal, prescribe rapidly, after only three years.⁵

The strategic imperative here is the constant management of the interruption of the limitation period (*przerwanie biegu przedawnienia*). Every time the creditor files a formal, valid application for enforcement with a court bailiff, the limitation clock immediately stops. When the bailiff eventually issues the decision of ineffectiveness and formally closes the case, the clock resets and begins counting anew from day zero. Therefore, to prevent the accrued interest—which on 155,000 PLN represents substantial capital—from legally evaporating, the creditor is forced to initiate a new, even if seemingly hopeless, enforcement procedure at least once every three years. The *bezskuteczność* certificate thus marks the exact, undeniable date from which the new three-year and six-year countdowns begin, preserving the life of the asset.

Part 7: The Asset Disclosure Procedure (*Wyjawienie Majątku*)

If the standard, database-driven bailiff investigation yields nothing, the Polish Code of Civil Procedure offers a secondary, highly inquisitorial tool: the obligation to disclose assets (*wyjawienie majątku*), stringently regulated by Article 913 of the KPC. The creditor can utilize the failure of the bailiff to formally petition the local district court to summon the debtor to a mandatory judicial hearing.

At this formal hearing, the debtor is legally compelled, under penalty of perjury and criminal prosecution for false testimony, to submit a comprehensive inventory of all global assets. This explicitly includes foreign bank accounts, Dutch employment contracts, hidden physical assets, and foreign real estate, and the debtor must swear a formal judicial oath as to its absolute

accuracy.²⁹

While theoretically an immensely powerful discovery tool, this mechanism encounters severe, often insurmountable friction in cross-border scenarios like the one involving GPUcomputer. The fundamental point of failure is service of process and state coercion. To compel the debtor to appear in a Polish court, the court must successfully and legally serve the summons. If the debtor's specific residential address in the Netherlands is unknown (with only the virtual Kraków address on file), service is functionally impossible, and the court will suspend the procedure. Even if the Dutch residential address is known, the Polish court must utilize complex international service mechanisms, such as the EU Service Regulation, which requires translating the documents and relying on Dutch authorities, drastically extending timelines to many months.²⁹

Furthermore, if the debtor successfully receives the summons in the Netherlands but simply ignores it, calculating the risk, and fails to appear in the Polish court, the court's enforcement options are severely neutered by borders. While the Polish judge possesses the theoretical authority to issue a financial fine or even order a coercive police arrest (*areszt*) to force attendance²⁹, this power stops at the Odra river. A Polish civil arrest warrant for failing to attend an asset disclosure hearing holds virtually zero weight outside the borders of the Republic of Poland. The Dutch police will not execute a civil bench warrant issued by a Kraków district court for a commercial debt collection matter. Consequently, against a debtor permanently residing and working abroad, the *wyjawienie majątku* is often a toothless endeavor, valuable only if the debtor frequently returns to Poland and risks detention at border control or during a routine domestic traffic stop.

Part 8: Escalation to Cross-Border Enforcement: Reaching Dutch Income

The foundational limitation of the Polish bailiff is the strict principle of territorial sovereignty. Article 1110(4) of the Code of Civil Procedure implicitly dictates that a Polish enforcement organ exercises the coercive power of the Polish state strictly within its physical geographic borders.³⁰ The highly efficient Kraków bailiff cannot electronically attach an account at ING Bank in Amsterdam, nor can they send a legally binding wage garnishment order to a Dutch logistics company employing the debtor. The Polish *tytuł wykonawczy* is, by default, a purely domestic instrument.

To penetrate the Dutch jurisdiction and legally seize the wages the debtor earns in the Netherlands, the Polish judgment must be recognized and rendered enforceable by Dutch sovereign authorities. Fortunately, given that both nations are Member States of the European Union, the creditor is insulated from archaic, drawn-out, and highly expensive *exequatur* proceedings that characterize enforcement outside the EU.

The optimal, modern strategy requires the creditor to return to the Polish court that issued the original EPU order (Lublin-Zachód) to technologically "upgrade" the title into a European instrument. Assuming the debtor did not actively defend against the EPU claim (which is standard for uncontested payment orders that become final by default), the Polish court can issue a **European Enforcement Order (EEO)** certificate under Regulation (EC) No 805/2004.

Once the standard EEO certificate is formally attached to the Polish EPU judgment, the combined documentary package transcends borders. It is treated by Dutch civil law exactly as if it were a judgment originally handed down by a Dutch court in The Hague or Amsterdam. With the EEO securely in hand, the creditor's final step is to retain a Dutch judicial officer (*Gerechtsdeurwaarder*). The Dutch system differs significantly from the Polish model; Dutch bailiffs often operate dual models as both private debt collection agencies and state-empowered enforcement officials. The Dutch *Gerechtsdeurwaarder*, armed with the Polish judgment and the EEO, possesses the full jurisdiction to access Dutch state databases, locate the debtor's exact Dutch employer, and execute a wage garnishment (*loonbeslag*) directly against the Dutch salary. This maneuver entirely bypasses the Polish procedural dead-end, shifting the execution directly to the jurisdiction where the debtor actually generates liquidity, thereby providing the most realistic avenue for recovering the 155,000 PLN principal.

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